

Dhane Ram v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 1 February 2011 · WRIT - C No. 6105 of 2011 · **Writ disposed; 3 HP interim billing; merits to CGRF.**

HEADNOTE

A 3 HP versus 10 HP irrigation billing dispute is a clause 7.7.4 matter and is for the Consumer Grievance Redressal Forum under clause 7.10(ii) of the U.P. Electricity Supply Code, 2005. The High Court will not decide it in writ. Pending a CGRF complaint, the consumer is to pay at 3 HP from 2006 and, on payment of an interim 3 HP bill, the connection is not to be disconnected.

FACTUAL SUMMARY

Dhane Ram held a 3 HP irrigation connection but was billed by the distribution licensee as if the load were 10 HP. The licensee's inspection of 18 March 2007 recorded that a 3 HP motor was being used for irrigation. Invoking two pending writs of the Allahabad High Court in which similar consumers had obtained interim orders, he sought a writ against the higher billing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.7.4

billing dispute — CGRF forum

HOLDING

A dispute over being billed for 10 HP when the sanctioned and inspected load is 3 HP is a billing matter under clause 7.7.4 of the U.P. Electricity Supply Code, 2005, and is squarely covered by clause 7.10(ii). The High Court will not exercise extraordinary writ jurisdiction; the consumer must proceed before the Consumer Grievance Redressal Forum. Pending that complaint, he is to pay at the 3 HP rate from 2006 and, on payment of an interim 3 HP bill issued within 15 days, the connection is not to be disconnected until the Forum disposes of the complaint, which he must file within 30 days. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances A 3 HP versus 10 HP irrigation billing dispute is a clause 7.7.4 matter and is for the Consumer Grievance Redressal Forum under clause 7.10(ii) of the U.P. Electricity Supply Code, 2005. The High Court will not decide it in writ.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CHARGING FOR 10 HP WAS JUSTIFIED ON THE MERITS

Left to the Consumer Grievance Redressal Forum; the Court only fixed interim 3 HP payment and non-disconnection pending that complaint. ¶ 1